

Amendment No. 1 to HB1723

Vaughan
Signature of Sponsor

AMEND Senate Bill No. 1469*

House Bill No. 1723

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 50, Chapter 5, is amended by adding the following as a new part:

50-5-301. As used in this part:

(1) "Account holder" means a person who has an account or profile to use an online platform;

(2) "Content creation" means the act of sharing video content filmed in this state on an online platform in exchange for compensation;

(3) "Content creator":

(A) Means an individual who is eighteen (18) years of age or older who is engaged in content creation; and

(B) Includes:

(i) A parent; or

(ii) An entity assuming the name or identity of an individual or individuals or family, for the purposes of the content creator;

(4) "Family" means:

(A) The members of a household living, on a full-time or a part-time basis, in one (1) house, condominium, apartment, or other dwelling;

(B) Individuals related by blood or ancestry, marriage, or adoption; or

(C) An individual who is held out to the public as being a family member of a minor;

(5) "Internet" means the combination of computer facilities and electromagnetic transmission media, and related equipment and software, comprising the interconnected worldwide network of computer networks that employs the Transmission Control Protocol/Internet Protocol or any successor protocol to transmit information;

(6) "Minor" means an individual who is under eighteen (18) years of age, is not emancipated, and is a resident of this state;

(7) "Online platform":

(A) Means an internet website or application that allows a person to create an account or profile and that enables an account holder to communicate or share posts, or both, with other account holders and users; and

(B) Does not include:

(i) A broadband internet access service, as defined in 47 CFR 8.1(b);

(ii) An email service;

(iii) An internet service, internet application, or website:

(a) That consists primarily of content that is not generated by account holders or users, but rather is preselected by the service, application, or website provider; and

(b) For which interactive functionality is incidental to, directly related to, or dependent upon, the preselected content described in subdivision (7)(B)(iii)(a);

(iv) Online shopping, if the interaction with other account holders or users is predominantly limited to the ability to send, receive, request, or settle funds, comment on transactions, display goods for sale, engage as consumers about products and reviews, or share a wish list;

(v) An internet service, internet application, or website that primarily provides career development opportunities;

(vi) A cloud storage or cloud computing service;

(vii) An online service, application, or website in which interaction between users is predominately used for technical support, or limited to reviewing products offered for sale by electronic commerce or commenting on such reviews shared by other users; or

(viii) Peer-to-peer payment platforms, if the interaction with other users or account holders is generally limited to the ability to send, receive, or request funds and to like or comment on such transactions, or other functions that are focused on sending, receiving, requesting, or settling payments between users or account holders;

(8) "Parent" means a parent, guardian, or individual who has custody of, or caregiving authority over, a minor;

(9) "Person" means an individual or entity;

(10) "Post" means content that an account holder makes available on an online platform for other account holders and users to consume, and includes information, ideas, news, stories, opinions, images, and videos; and

(11) "User" means a person who consumes posts on an online platform, but is not an account holder.

50-5-302.

(a) A minor is engaged in the work of content creation if the following criteria are met at any time during the previous twelve-month period:

(1) At least thirty percent (30%) of a content creator's compensated video content produced within a thirty-day period included the likeness, name, or photograph of the minor. Content percentage is measured by the percentage of time the likeness, name, or photograph of the minor or if more than one (1) minor regularly appears in the content creator's content, any of the minors, visually

appears or is the subject of an oral narrative in a video segment as compared to the total length of the segment;

(2) The number of views received per video segment on an online platform met the platform's threshold for generating compensation or the content creator received actual compensation for video content equal to or greater than ten cents (10¢) per view; and

(3) The content creator received actual compensation for video content of at least fifteen thousand dollars (\$15,000) in the prior twelve-month period.

(b) A minor who is fourteen (14) years of age or older, but under eighteen (18) years of age, may produce, create, and publish the minor's own video content and must receive one hundred percent (100%) of the proceeds of the minor's compensation for the minor's own content creation.

(c) A minor who appears incidentally in a video that is published by a content creator is not engaged in the work of content creation.

50-5-303.

(a) A content creator whose video content features a minor who is fourteen (14) years of age or older, but under eighteen (18) years of age, engaged in the work of content creation as described in § 50-5-302(a) shall maintain the following records and retain the records until the minor reaches twenty-one (21) years of age:

(1) The name and documentary proof of the age of the minor engaged in the work of content creation;

(2) The amount of content creation that generated compensation as described in § 50-5-302(a) during the reporting period;

(3) The total number of minutes of content creation for which the content creator received compensation during the reporting period;

(4) The total number of minutes a minor was featured in content creation during the reporting period;

(5) The total compensation generated from content creation featuring a minor during the reporting period; and

(6) The amount deposited into the trust account for the benefit of the minor engaged in the work of content creation as required by § 50-5-304.

(b) The content creator shall provide notice to the minor of the existence of the records required by subsection (a) and the records must be readily accessible to the minor for review.

50-5-304.

(a) A content creator shall compensate a minor who is engaged in the work of content creation under § 50-5-302(a) in accordance with this section. The content creator shall set aside gross earnings on the video content that includes the likeness, name, or photograph of the minor in a trust account to be preserved for the benefit of the minor until the minor reaches eighteen (18) years of age, according to the following distribution:

(1) If only one (1) minor meets the content threshold described in § 50-5-302(a)(1), the percentage of total gross earnings on a video segment including the likeness, name, or photograph of the minor that is equal to or greater than half of the content percentage that includes the minor as described in § 50-5-302(a)(1); or

(2) If two (2) or more minors meet the content threshold described in § 50-5-302(a)(1), and a video segment includes two (2) or more of those minors, the percentage described in subdivision (a)(1) for all minors in a segment must be equally divided between the minors regardless of differences in percentage of content provided by the individual minors.

(b) A trust account required by subsection (a) must provide that:

(1) The money in the account is available only to the minor engaged in the work of content creation;

(2) The account is held by a state or national bank, savings and loan association, credit union, or trust company;

(3) The money in the account becomes available to the minor engaged in the work of content creation upon the minor attaining eighteen (18) years of age or upon a declaration that the minor is emancipated; and

(4) The account meets the requirements of the Tennessee Uniform Transfers to Minors Act, compiled in title 35, chapter 7.

(c) If a content creator violates this section, then the minor may commence a civil action to enforce this section regarding the trust account. In an action brought in accordance with this subsection (c), the court may award the following damages:

(1) Actual damages, including any compensation owed under subsection (a);

(2) Punitive damages; and

(3) The costs of the action, including attorney's fees and court costs.

(d) This section does not have an effect on a party that is neither the content creator nor the minor who engaged in the work of content creation.

50-5-305.

(a) In addition to the civil action provided in § 50-5-304(c), the minor may commence a civil action against a content creator for injunctive relief or other relief the court finds just and equitable to enforce this part.

(b) The powers and remedies provided in this part are cumulative and supplementary to all other powers and remedies otherwise provided by law. The invocation of one (1) power or remedy in this part does not exclude or prohibit the use of another available remedy.

50-5-306.

(a) A waiver or limitation, or a purported waiver or limitation, of a protection or requirement provided under this part is void as unlawful and against public policy.

(b) A court, arbitrator, or tribunal shall not enforce or give effect to a waiver or limitation described in subsection (a), notwithstanding a contract or choice of law provision in a contract.

50-5-307.

(a) Video content containing the likeness of a minor must be deleted and removed from an online platform by the person who shared the content, the account holder, or another person who has control over the account when the request is made by a minor who is fourteen (14) years of age or older whose likeness appears in the content, or by an adult who was under eighteen (18) years of age when the person's likeness was used in the content.

(b) If the responsible content creator fails to take action after a reasonable period of time, but no longer than thirty (30) days, the minor may commence an action to enforce subsection (a). The court may award a minor who prevails in any action brought in accordance with this section the following:

- (1) Injunctive relief;
- (2) Actual damages;
- (3) Punitive damages; and
- (4) Reasonable costs of bringing the action, including attorney's fees and court costs.

50-5-308.

(a) Except as provided in subsection (b), a person shall not knowingly produce or distribute publicly, including by computer, a visual depiction of a minor with the intent to sexually gratify or elicit a sexual response in the viewer or any other person and benefit financially from doing so.

(b) Subsection (a) does not apply to:

(1) A lawfully authorized investigative, protective, or intelligence activity of a law enforcement agency of the United States, this state, or a political subdivision or an intelligence agency of the United States;

(2) An individual acting in good faith to report unlawful activity to law enforcement or in pursuance of a legal or professional or other lawful obligation;

(3) A document produced or filed as part of a legal proceeding; and

(4) An online platform, with regard to content provided by creators, unless the online platform intentionally solicits, or knowingly and predominantly distributes, such content. Subsection (a) does not impose liability in a manner that is inconsistent with 47 U.S.C. § 230.

(c) If a person violates subsection (a), or attempts or conspires to do so, then the depicted minor may bring an action to recover the following:

(1) Actual damages;

(2) Punitive damages, under § 29-39-104; and

(3) Reasonable costs of litigation, including attorney's fees.

(d) This section does not affect a right or remedy available under another law of this state.

(e) With regard to engagement in the work of content creation by persons a social media platform knows to be a minor, the social media platform shall develop and implement a risk-based strategy to help mitigate risks related to monetization of the intentional sexualization of known minors. The strategy must be documented and reassessed on a reasonable recurring basis and may include, at the sole discretion of the social media platform, when commercially reasonable:

(1) Policies that govern content and related monetization;

(2) Restrictions of features on content featuring minors;

(3) Use of an automated system to identify and enforce this part against potentially problematic content and accounts;

(4) Inclusion of guardrails to mitigate against recommendation systems surfacing unlawful content; and

(5) Quality assurance processes recurring at reasonable intervals to ensure that mitigations are working as intended.

(f) Social media platforms must ensure that information about the social media's content policies, settings, and best practices for content featuring minors are publicly available, understandable to both adults and minors, and informed by research and outside expertise. The information must inform content creators that content may be subject to various legal requirements, and explain risks and steps to protect minors appearing in posts from exploitation.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.